

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 26-001

**Amendments to Title 2, Chapter 4 Section 2-401.9 of the Chickasaw Nation Code
(Insurance for Elected Officials Who Leave Office)**

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules regarding insurance for elected officials who leave office, and

WHEREAS, the Legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4 Section 2-401.9 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red):

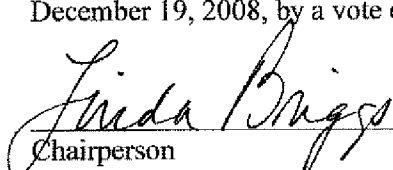
"SECTION 2-401.9

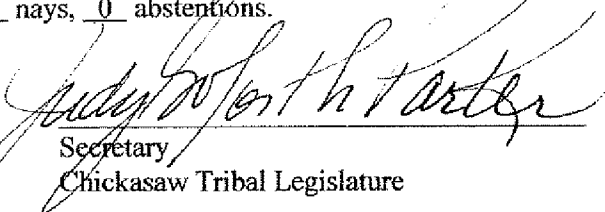
**INSURANCE FOR ELECTED OFFICIALS WHO LEAVE
OFFICE.**

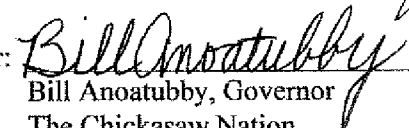
D. Effective Date; Grandfather Clause.

2. All officials serving in any elected office on the Effective Date and all officials elected after the Effective Date shall be given credit for all years served in any elected office under the Chickasaw Constitution of 1983, even if such years were served prior to the Effective Date. All former elected officials who have served in any elected office for at least twelve (12) years under the Chickasaw Constitution of 1983, even when all such years were served prior to the Effective Date, shall be entitled to insurance in accordance with this Section."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on December 19, 2008, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: DEC 19 2008

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(Insurance for Elected Officials Who Leave Office)**

Explanation: This resolution amends Title 2, Chapter 4 Section 2-401.9 of the Chickasaw Nation Code to make those Chickasaw citizens who have served in any elected office for at least 12 years under the Chickasaw Constitution of 1983, even when all such years were served prior to the established effective date, eligible for insurance as a retirement benefit in accordance with Title 2, Chapter 4 Section 2-401.9 of the Chickasaw Nation Code. Currently, 3 former Legislators and Justices will be eligible for insurance under these amendments.

Presented By: Legislative Committee
Steve Woods, Committee Chair